



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 028298

Date of Incident: 3/15/2025

Date Received: 3/17/2025

Facility Name: Millcreek of Arkansas PRTF

Facility Number: 233

Incident Type: Licensing

Report Description: Av is [REDACTED] who resides at Millcreek Behavioral. AOs are [REDACTED] Unknown, [REDACTED] Unknown, And Unknown who are staff at Millcreek Behavioral. Yesterday in the school bathroom. Unknown who is a female staff member forced him to put his private part into her butt. When he was asked what he meant and if it was in her butt, he said "No, the other hole." He stated that she has a knife, and he does not remember how he got his penis into her vagina. [REDACTED] who are staff regularly beat [REDACTED] with their fists and hands. The last time it happened was a couple days ago. They take him down to his room where there are no cameras. He stated that they do leave bruises, but he currently doesn't have any. He was asked if he told someone, and he stated that he is afraid because he doesn't want to get in trouble because he knows that he will get beat again. Ultimately, he had enough, and he ran away from the facility. He stole a car and the wrecked it and is currently at [REDACTED]

Interim Action Narrative: [REDACTED]
have been put on administrative leave pending licensing investigation.

[REDACTED] Narrative:

Licensing Narrative: 3/17/25-Reviewed for licensing concerns. Phone call had with [REDACTED] for further information. Program Manager requested police report from the [REDACTED]

██████ PD. Licensing Specialist attended interview with resident. 3/18/2025, Program Coordinator called ██████ SO and requested the police report. Incident reported received and Licensing Specialist informed. ██████ reviewed. 3/18/25-Facility visited with ██████. Facility cited 907.2 and 907.3. 4/7/25-Facility sent email that A/O 1 will not be retrained as she will be terminated from employment. 4/21/2025- Received an email from the facility requesting the removal of the ICA for staff ██████ to return to work. Retraining documentation was received for staff ██████. and for another staff ██████ as they were found to have not intervened when the resident was allowed to leave to the nurse's station unattended. Staff ██████ was terminated due to this complaint on 4/8/2025 and staff ██████ was terminated due to other issues on 3/27/2025. The ICA was lifted for staff ██████ to return to normal job duties. 5/19/2025, documentation reviewed. Complaint founded by licensing. Approved by Program Coordinator. Case complete.



Division of Child Care & Early Childhood Education

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.508.8910 F: 501.683.6060 TDD: 501.682.1550

521 Visit Compliance Report

Licensee: Millcreek of Arkansas PRTF

Facility Number: 233

Licensee Address: 1828 INDUSTRIAL DR
FORDYCE AR 71742-7110

Licensing Specialist: Clayton DeBoer

Person In Charge:

Record Visit Date: 3/18/2025

Home Visit Date: 3/18/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Regulation Number: 900.907.3

Regulation Description: Staff/child ratio shall be at least 1:6 during waking hours and 1:8 during sleeping hours.

Finding Description: The A/V was allowed to go to the nurse's station by himself resulting in a ratio of 0:1 which violates the required ratio of 1:6 during waking hours.

Action Due Date: 2025-04-04

Action Due Description: A/O 1 shall be retrained on supervision and ratio prior to returning to work. Documentation of the retraining shall be sent to the Licensing Specialist was completed. A/O 1 is currently on leave pending the results of the investigation.

Comply Date: 2025-04-07

Regulation Number: 900.907.2

Regulation Description: Child caring staff shall be responsible for providing the level of supervision, care, and treatment necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards and risks.

Finding Description: The A/V was allowed to go to the nurse's station by himself without an escort resulting in a subsequent elopement, theft of a vehicle and a motor vehicle accident.

Action Due Date: 2025-04-04

Action Due Description: A/O 1 shall be retrained on supervision and ratio prior to returning to work. Documentation of the retraining shall be sent to the Licensing Specialist was completed. A/O 1 is currently on leave pending the results of the investigation.

Comply Date: 2025-04-07

Narrative:

The Licensing Specialist visited the facility with [REDACTED] to follow up on complaint case 028298.

The facility census is currently 158 PRTF residents.

The Licensing Specialist observed interviews with Millcreek Teacher, Rock Hill Staff Supervisor, and 2 residents who are the A/V's roommates.

There is no camera footage of the school or A/V's room where A/V alleges complaints to have taken place.

The Millcreek Teacher reported that at no time did they witness A/O 1 taking the A/V out of the classroom for 2 hours, nor could they recall A/O 1 taking the A/V out of classroom at all. The teacher reported that the A/O 1 is one of the staff who sit in with the residents during class. The teacher stated could not recall a time in which the A/V told her anything about A/O 1 that would give them cause for concern.

The Rock Hill Supervisor reported that at no time have they witnessed any staff doing anything physically or sexually abusive to A/V. The Supervisor stated they have not witnessed A/O 2 or A/O 3 do anything physically or sexually abusive to the A/V. The Supervisor reported that the A/V was sent to the nurse's office alone, which is against supervision and ratio policy. The Supervisor added that anytime a resident goes somewhere on campus, he/she is to be accompanied by at least one staff member. The Supervisor stated that it was A/O 1 who sent the A/V to the nurse's station alone.

Licensing sat in on the interviews with the A/V's two roommates as the A/V reported that A/O 2 and A/O 3 regularly beat the A/V with their fists and hands off camera in the bedroom.

Roommate 1: The roommate reported that they had never seen any staff abusing the A/V. Roommate 1 stated they have never seen A/O 3 abuse the A/V. Roommate 1 stated that they have never seen staff touch residents inappropriately. Roommate 1 stated that the A/V says that staff are abusing him.

Roommate 2: The roommate reported that staff are "fine". Roommate 2 stated that they have never seen any staff touch residents inappropriately. The roommate stated he had never seen staff abuse the A/V adding "he says staff abuse him, they are not, I saw the restraint" (at Rock Hill).

Additional information was received from the Arkansas State Police explaining that after the A/V was picked up by the Fordyce police department, a phone call was made to Millcreek of Arkansas PRTF to notify them of the A/V being in their custody. Reportedly, Millcreek of Arkansas PRTF staff stated that they did not have any residents missing from the property. Millcreek of Arkansas PRTF staff then conducted a head count of the residents and discovered that they did have one resident missing (the A/V). Arkansas State Police reported that it was over one hour that the A/V was missing before Millcreek of Arkansas PRTF realized that they had a missing resident.

Licensing complaint case 028298 is FOUNDED for violations of Minimum Licensing Standards

907.2 Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks. As evidenced by:

- The report submitted to the Licensing Unit by the facility into the ELS portal states in part "He was allowed to go without supervision by direct care staff. He arrived at the nursing station and was instructed to return to the living unit."
- The interview with the Rock Hill Supervisor revealed that the A/O 1 allowed the A/V to leave to go to the nurse's station without a staff escort.
- A report received from the Arkansas State Police details how the A/V had eloped from the property for over one hour before the facility discovered they had a missing resident.

907.3 Staff to child ratio shall be at least one to six (1:6) during waking hours and one to eight (1:8) during sleeping hours. As evidenced by:

- The report submitted to the Licensing Unit by the facility into the ELS portal states in part "He was allowed to go without supervision by direct care staff. He arrived at the nursing station and was instructed to return to the living unit."
- The interview with the Rock Hill Supervisor revealed that the A/O 1 allowed the A/V to leave to go to the nurse's station without a staff escort.

The lack of supervision and failure to maintain the required ratio resulted in the A/V eloping off the facility grounds on 3/15/2025, the theft of a vehicle, and a subsequent motor vehicle crash. The resident was taken to the emergency room for an assessment but was medically cleared to return to the facility.

Licensing complaint case 02898 is UNFOUNDED for violations of Minimum Licensing Standards

109.1.g Unprofessional conduct in the practice of child welfare activities shall include without limitation: (g) Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children. As evidenced by:

- The interview with the A/V's classroom teacher revealed that they have never witnessed the A/V leaving the classroom with A/O 1.
- The A/V made a statement that incidents of sexual abuse occurred against the A/V by A/O 1 on 3/16/2025, 3/17/2025, and 3/18/2025. However, A/O 1 was already on administrative leave and not on the facility property during the three dates provided.

905.4.gThe following disciplinary actions shall not be used: (g) Physical injury or threat of bodily harm; As evidenced by:

- Interviews with both the A/Vs roommates and the Rock Hill Supervisor revealed that none of them have ever witnessed A/O 2 or A/O 3 abuse A/V.

******* Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.**

Provider Comments:

At Millcreek Behavioral Health, we are unwavering in our commitment to the safety and well-being of our residents and the integrity of our team. Our staff are trained to maintain close supervision and ensure appropriate staffing ratios in alignment with best practices and regulatory standards.

In this instance, a staff member failed to provide adequate supervision, resulting in a patient elopement. This employee had completed all required pre-employment screenings, passed background checks, and received thorough training. However, she acted outside the scope of our policies and expectations by not maintaining proper supervision.

This lapse in judgment does not reflect our standards, and as such, her employment has been terminated. We remain committed to reinforcing protocols and ensuring accountability to uphold the safety of those in our care.

CCL Staff Signature :

Date: 3/18/2025



Provider Signature :

Date: 3/18/2025

